

FRINK VS. MANKA**Case Number: 23CV-0201842**

Tentative Ruling on Motion to Compel Further Discovery Responses and to Respond to Demand for Production of Documents: The present motion is unopposed. Plaintiff Samuel Frink moves for an order compelling Defendant Paul Manka to provide further responses to Form Interrogatories, Set One and to compel a response to the Demand for Production of Documents, Set One. Plaintiff has submitted a “declaration” in support of his motion, but it was not signed under penalty of perjury. See CCP § 2015.5. It therefore has no evidentiary value and cannot establish the facts necessary to issue any discovery orders.

The motion is **DENIED** without prejudice due to lack of evidence. No proposed order was lodged with the Court as required by Local Rule 5.17(D). Plaintiff shall prepare the order.

GALLEGOS VS. BENEFICIAL INSECTARY, INC**Case Number: 24CV-0205779**

Tentative Ruling on Motion to Compel Arbitration: Defendant Beneficial Insectary, Inc. moves for an order compelling Plaintiff Andrew Gallegos into arbitration, dismissing the putative class claims, and staying the matter during the pendency of the arbitration. The matter is stayed. On October 22, 2024, Plaintiff filed a Non-Opposition to Defendant’s Motion to Compel Arbitration and Stay Proceedings. On October 24, 2024, the Court issued an Order to the parties that noted the Non-Opposition and invited a Stipulation and Order as issuing a ruling on the merits of a non-opposed motion is not an efficient use of the judicial resources. The parties have taken no action since. Hearing on the motion is continued to **Monday, December 23, 2024 at 8:30 a.m. in Department 63**. The parties are **ORDERED** to meet and confer regarding whether this motion can be resolved by Stipulation and Order. If a ruling on the merits is necessary, the Court **ORDERS** that the parties file a joint statement outlining the disputed issues no later than December 13, 2024. **No appearance is necessary on today’s calendar.**

JONES, ET AL. VS. DIETRICK**Case Number: 23CV-0203841**

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued to Plaintiffs Tiffany Jones, Christopher Beisel and Raeven Jones-Beisel and counsel Wilshire Law Firm on August 28, 2024 for failure to timely serve pleadings on Defendant pursuant to CRC 3.110(b). The Complaint was filed on December 8, 2023. “The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint.” CRC 3.110(b). A written response was filed that provides sufficient excuse for the delay. The Order to Show Cause is **DISCHARGED**. The matter will be on calendar on **Monday, December 23, 2024 at 9:00 a.m. in Department 63** for review regarding status of service. Plaintiffs are **ORDERED** to either effect proper service or seek authority to serve by publication prior to the next hearing. **No appearance is necessary on today’s calendar.**

JPMORGAN CHASE BANK, N.A. VS. WOULFE**Case Number: 24CVG-00093**

Tentative Ruling on Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted: Plaintiff JPMorgan Chase Bank, N.A. seeks an order deeming the truth of matters specified in Plaintiff’s Requests for Admission, Set One. Despite being timely served, Defendant Dillon E Woulfe did not file an Opposition.

When a party fails to respond to a Requests for Admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Plaintiff’s moving papers sufficiently demonstrate that Defendant has failed to respond to Request for Admissions, Set One within the required time frame.

Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390. Despite not being required to meet and confer, Plaintiff mailed Defendant meet and confer correspondence on April 24, 2024.

Monetary sanctions are mandatory per CCP § 2033.280(c), however, Plaintiff did not seek monetary sanctions and provided no evidence regarding attorney's fees or other costs associated with bringing the motion. Sanctions should only be imposed for "reasonable" expenses. CCP § 2033.030. The Court does not have information upon which to make a finding that any amount of sanctions were for reasonable expenses and will not impose sanctions.

The motion is **GRANTED**. Defendant is deemed to have admitted as true each of the items contained in Plaintiff's Request for Admissions, Set One. Objections are waived. Plaintiff provided a proposed Order that will be executed by the Court. The Court confirms the trial date of March 24, 2025.

JPMORGAN CHASE BANK, N.A. VS. STENE

Case Number: 24CVG-00317

Tentative Ruling on Motion for Order that Matters in Request for Admission of Truth of Facts Deemed be Admitted: Plaintiff JPMorgan Chase Bank, N.A. seeks an order deeming the truth of matters specified in Plaintiff's Requests for Admission, Set One. Despite being timely served, Defendant Andy L Stene did not file an Opposition.

When a party fails to respond to a Requests for Admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Plaintiff's moving papers sufficiently demonstrate that Defendant has failed to respond to Request for Admissions, Set One within the required time frame.

Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390.

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The motion is **GRANTED**. Defendant is deemed to have admitted as true each of the items contained in Plaintiff's Request for Admissions, Set One. Objections are waived. Plaintiff provided a proposed Order that will be executed by the Court. The Court confirms the trial date of May 12, 2025.

MCCOLM VS. SHAW, DDS, ET AL.

Case Number: 24CV-0204406

Tentative Ruling on Motion for Order Quashing Subpoena Duces Tecum: Plaintiff Patricia McColm moves to quash subpoenas issued to UCSF School of Dentistry by Defendants Daniel Shaw, D.D.S. and Dana Park Dental. The motion is opposed by Defendants.

A Reply was filed by Plaintiff on October 31, 2024. The Reply should have been filed and served no later than